

# General Club Participation Waiver

Adult participant version | Version 1.0 | Effective when signed

**PLEASE READ BEFORE SIGNING. THIS DOCUMENT AFFECTS LEGAL RIGHTS. SECTION 5 INCLUDES A RELEASE OF CLAIMS FOR ORDINARY NEGLIGENCE, TO THE EXTENT ONTARIO LAW PERMITS.**

## 1. Scope and club status

I voluntarily participate in activities organized by the University of Toronto Exploration & Travel Club (UTETC or the Club). This document applies to Club activities I choose to attend during the 12 months after I sign it, including meetings, social and cultural events, local outings, hikes, recreational trips, and travel to or from those activities. Event information may identify additional risks and requirements. For skiing, camping, canoeing, motorized recreation, international travel, or another activity with material additional risks, the Club will ask me to review a separate Trip-Specific Risk Acknowledgement before participation.

UTETC is a student-run group. Its recognition by the University of Toronto does not mean that the University organizes, supervises, endorses, insures, or assumes legal responsibility for each Club activity. The University of Toronto is not a Released Party under this document. Club officers and volunteers are not necessarily professional guides, medical providers, transportation providers, or insurers.

## 2. Risks I understand

Club activities can involve injury, illness, property damage, and, in serious cases, death. Risks vary by activity and may include:

- Slips and falls; uneven or slippery ground; stairs, trails, snow, ice, and water edges; physical exertion; changing weather; heat, cold, darkness, and limited shelter.
- Food allergies or contamination; illness; wildlife, insects, plants, or environmental hazards; and unsuitable or failed clothing or equipment.
- Crowds, other participants, members of the public, third-party venues or providers, and unforeseen changes or cancellations.
- Travel by walking, public transit, hired transport, or private vehicle, including collision, injury during loading or unloading, breakdown, delay, or limited access to assistance.
- Delay in first aid, emergency response, or evacuation, particularly outside urban areas or where communications are limited.

This is a general description, not a complete list. I will read the event description and any activity-specific acknowledgement, and ask questions if a risk or requirement is unclear.

## 3. My responsibilities

I will provide accurate information reasonably needed for safe participation; tell a designated organizer about a material health, accessibility, or safety need through the Club's separate private process; bring suitable equipment; follow applicable law, venue rules, and reasonable safety directions; use seat belts where provided; and not participate or drive while impaired or unfit. I will tell an organizer if I leave an agreed route or group. I may decline a particular activity or stop participating, while taking reasonable steps to avoid creating a risk to myself or others. The Club may change, postpone, or stop an activity for safety reasons.

## 4. Carpool, providers, property, and insurance

Where private-vehicle carpooling is offered, the vehicle is owned or supplied and operated by an individual driver. The Club's coordination of a carpool does not guarantee the vehicle, driver, route, road conditions, or insurance coverage. Each driver remains responsible for a valid licence, lawful vehicle use, legally required insurance, and safe operation. I will wear a seat belt and may decline a ride. A separate driver process is required before a person is assigned to drive.

Third-party venues, guides, instructors, carriers, rental businesses, and other providers may have their own terms, insurance, and safety requirements. The Club does not guarantee their services. This document does not itself release a third-party provider from liability or replace a provider's own agreement.

I am responsible for safeguarding my belongings and for arranging any health, travel, accident, cancellation, liability, or property insurance I consider appropriate. I understand that Club membership and this waiver do not promise any particular insurance coverage. Responsibility for a loss remains subject to applicable law.

## 5. Assumption of risk and release of ordinary-negligence claims

I knowingly accept the inherent and ordinary risks of the Club activities I choose to attend, including the risks described above and those identified for a particular event.

**TO THE FULLEST EXTENT PERMITTED BY APPLICABLE LAW, I RELEASE AND AGREE NOT TO SUE UTETC AND ITS OFFICERS, EVENT ORGANIZERS, VOLUNTEERS, AND APPROVED VOLUNTEER DRIVERS, WHILE ACTING IN THOSE CLUB ROLES (TOGETHER, THE “RELEASED PARTIES”), FOR CLAIMS ARISING FROM MY PARTICIPATION IN A COVERED CLUB ACTIVITY, INCLUDING CLAIMS FOR PERSONAL INJURY, ILLNESS, DEATH, OR PROPERTY LOSS CAUSED BY A RELEASED PARTY'S ORDINARY NEGLIGENCE IN PLANNING, SUPERVISION, EQUIPMENT, PREMISES, OR TRANSPORT COORDINATION.**

I understand that this includes claims that might otherwise arise under Ontario's *Occupiers' Liability Act*, where that Act applies and where exclusion is legally permitted. This release does not purport to waive a right that cannot lawfully be waived, bind anyone who has not signed it, or release the University of Toronto or an independent third-party provider. No waiver guarantees that an activity is safe or determines whether a particular claim is legally barred.

## 6. Emergency assistance

If an emergency occurs, I authorize Club organizers to contact emergency services, share information reasonably necessary for a response, and help arrange first aid, transport, or evacuation. This does not authorize the Club to consent to medical treatment for me where the law requires my consent or a substitute decision-maker's consent. I am responsible for costs that are legally mine and are not covered by insurance or another responsible party.

## 7. Conduct and event requirements

I will treat others respectfully and comply with applicable law and reasonable event safety rules. Harassment, discrimination, dangerous conduct, and impaired driving are prohibited. An organizer may restrict or end my participation when reasonably necessary for safety or conduct, taking the circumstances into account. Event logistics, payment, and refund terms are supplied separately and are not part of this release.

## 8. Ontario law and severability

This document is governed by Ontario law, subject to any mandatory law that applies to a particular event or location. If a provision is unenforceable, the remaining provisions continue to apply to the extent the law permits. Additional event or provider documents may apply to specific activities; a specific risk acknowledgement supplements this general document.

## 9. Adult participant acknowledgement and signature

**I confirm that I am at least 18 years old, have read the entire document, understand the highlighted release in section 5, have had an opportunity to ask questions, and voluntarily agree to its terms.**

Participant full legal name: \_\_\_\_\_

Signature (handwritten or electronic): \_\_\_\_\_

Date signed (YYYY-MM-DD): \_\_\_\_\_

Email or registration identifier: \_\_\_\_\_

Document version accepted: **1.0**

**Club administration:** Retain the exact version displayed, the participant's affirmative acceptance, name, date/time, and any signed copy with the registration record. Do not use this adult form for anyone under 18; obtain a separately reviewed process before accepting a minor.